

Authority for Personal Data
P.O. Box 93374, 2509 AJ The Hague
Hoge Nieuwstraat 8, 2514 EL The Hague
T 070 8888 500 - F 070 8888 501
autoriteitpersoonsgegevens.nl
The Minister of Social Affairs and Employment
P.O. Box 90801
2509 LV THE HAGUE

Date

September 5, 2022

Our reference

z2022-4253

Your letter of

July 5, 2022

Your reference

2022-135011

Subject

Data exchange between UWV and employers regarding recourse

Dear Ms. van Gennip,

In a letter dated July 5, 2022, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR), regarding the draft amendment to the Work and Income (Capacity for Work) Act and the Sickness Benefits Act in connection with data sharing between UWV and employers in recourse situations (to be included in the Social Affairs and Employment Consolidation Act 2023; hereinafter: the draft).

The AP has a comment on the draft and advises that it be taken into account.

Scope of the draft

An employee may become ill or incapacitated due to the fault of a third party, for example, due to a traffic accident. In this situation, the employer can attempt to recover the costs incurred due to the obligation to continue paying wages from the third party. UWV has a similar authority when the employee is entitled to a Sickness Benefits (ZW) or Work and Income (WIA) benefit. If the employer has chosen to bear the (own) risk for the payment of that benefit, they have an independent right to seek recourse. In these situations, both the employer and UWV can hold the third party—often the insurer of that third party—legally accountable for the wage costs, ZW, or WIA benefits caused by the actions of the third party. Reasonable costs incurred by the employer or UWV to reintegrate the employee can also be recovered from the third party.

The draft aims to create a legal basis to enable communication between UWV and employers in such situations. The mutual provision of information between UWV and (former) employers is limited—besides the identification of the employee¹—to several legal/administrative aspects in individual recourse cases.² However, there is indeed data concerning health, as the information to be exchanged indirectly indicates something about the health status of the employee, namely that the employee is eligible for a benefit due to illness or disability.

Advice

The draft aims to create a legal basis for enabling communication between UWV and employers in recourse situations. However, the explanatory memorandum lacks a designation of the applicable legal basis in Article 6 GDPR for UWV and employers, while this is not evident in this case.

Without a legal basis, no personal data may be processed.³ Except in evident cases, it is customary—and advisable—that the explanatory memorandum addresses the legal bases for intended processing.

The AP advises that the legal basis for the data exchange be mentioned for both UWV and employers in the explanatory memorandum.

Disclosure of the advice

The AP intends to make this advice public on the website www.autoriteitpersoonsgegevens.nl as soon as the text of the (amended) draft is made public. The AP would appreciate being informed of the expected timing of the disclosure as soon as this is known.

Sincerely,

Authority for Personal Data,

Aleid Wolfsen

Chairman

1 based on name, address, date of birth, and BSN.

2 • Has liability been established or not (the information to be exchanged concerns only the answer “yes” or “no” and the reason why or why not, with the provision of the necessary details of the liable party);

- If so, has liability been acknowledged (the information to be exchanged concerns only the answer “yes” or “no” and the reason why or why not);

- What is the status of the case, for example, whether the liable party has proceeded to payment (the information to be exchanged concerns only the notification of whether the recourse case has been settled with the insurer and the reason why or why not);

- Regarding self-insurers: what is the net benefit paid per month (the self-insurer receives a gross invoice from UWV for the benefit paid by UWV, while the self-insurer may only seek recourse for the net benefit).

3 Article 6, first paragraph, GDPR.